

The examination is being carried out on the **following application documents**

Description, Pages

1-67 filed with entry into the regional phase before the EPO

Claims, Numbers

1-8 filed in electronic form on 06-08-2020

Drawings, Sheets

1/4-4/4 filed with entry into the regional phase before the EPO

- 1 By letter of 06-08-2020, the applicant has filed a new set of claims where R¹ has been restricted to optionally substituted or unsubstituted phenyl or optionally substituted C₃-C₈ cycloalkyl.

In addition, in independent claims 3 and 5 some specific compounds have been added which were originally disclosed (see compound numbers within the description as also specified in claims 3 and 5).

Therefore, the present subject-matter meets the requirements of article 123(2) EPC.

- 2 In view of the fact that R¹ has been restricted to optionally substituted or unsubstituted phenyl or optionally substituted C₃-C₈ cycloalkyl, the compounds 19, 20, 31 and 32 of D4 do no more fall under the present scope since in these compounds at that the position of R¹ there is only hydrogen.

Therefore, the subject matter of present claims 1, 2, 4 and 6-8 is novel pursuant to article 54(1)(2) EPC.

- 3 However, looking at present claims 3 and 5 it becomes clear that within these claims compounds are claimed with R¹ being hydrogen which no more fall under the present scope. In claim 3 these are the first two compounds and also the last compound, whereas in claim 5 only the first two compounds are affected.

Therefore, the subject matter of present claims 3 and 5 is still not novel and thus does not meet the requirements of article 54(1)(2) EPC.

In addition, the applicant is requested to make claims 3 and 5 dependent from claim 1 for reasons of conciseness (article 84 EPC).

- 4 As regards inventive step, the applicant could show that the present compounds show better activities as regards the anti-proliferation activity and/ or EGFR inhibition than the compounds 19, 20, 31 and 32 of D4. In addition, it has to be noted that the compounds of D4 and the present ones significantly differ in the substituent corresponding to present R¹ since the compounds of D4 only have hydrogen or methyl at this position whereas the present compounds have carbon based cycle at this position.

Since the above superior effects were not predictable for a skilled person, the subject matter of present claims 1, 2, 4 and 6-8 as well as the novel subject matter of present claims 3 and 5 involves an inventive step pursuant to article 56 EPC.

- 5 If the above mentioned objections could be overcome for an exactly characterised and duly limited subject-matter the following items would need attention:

(a) In any amendments Article 123(2) EPC should be taken into consideration. The Applicant is requested to indicate the basis of the amendments.

(b) The description should be adapted to any amended set of claims and be complemented by a discussion of D1 to D4 (rule 42(1)(b) EPC).

(c) In addition the applicant is requested to delete the last paragraph on page 67 in view of the fact that it comprises the expression "incorporated by reference" (see guidelines F-III, 8) as well the expression "equivalent" (Guidelines F-IV,4.4).